

1 _____ BILL NO. _____

2 INTRODUCED BY _____

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4 A BILL FOR AN ACT ENTITLED: "AN ACT REVISING LAWS RELATED TO INTERIM COMMITTEE BILL
5 DRAFTS; CLARIFYING THE TERM "PARTISAN BASIS"; INCREASING THE NUMBER OF DRAFT
6 REQUESTS THAT CAN BE REQUESTED ON A PARTISAN BASIS; AMENDING SECTION 5-5-215, MCA;
7 AND PROVIDING AN IMMEDIATE EFFECTIVE DATE."

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9 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

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11 **Section 1.** Section 5-5-215, MCA, is amended to read:

12 **"5-5-215. Duties of interim committees.** (1) Each interim committee shall:

13 (a) review administrative rules within its jurisdiction;

14 (b) subject to 5-5-217(3), conduct interim studies as assigned;

15 (c) monitor the operation of assigned executive branch agencies with specific attention to the
16 following:

17 (i) identification of issues likely to require future legislative attention;

18 (ii) opportunities to improve existing law through the analysis of problems experienced with the
19 application of the law by an agency; and

20 (iii) experiences of the state's citizens with the operation of an agency that may be amenable to
21 improvement through legislative action;

22 (d) review, if requested by any member of the interim committee, the statutorily established
23 advisory councils and required reports of assigned agencies to make recommendations to the next legislature
24 on retention or elimination of any advisory council or required reports pursuant to 5-11-210;

25 (e) review proposed legislation of assigned agencies or entities as provided in the joint legislative
26 rules;

27 (f) accumulate, compile, analyze, and furnish information bearing upon its assignment and
28 relevant to existing or prospective legislation as it determines, on its own initiative, to be pertinent to the

1 adequate completion of its work; and

2 (g) review proposed statewide initiatives as defined in 13-27-110 within the interim committee's
3 subject area and vote to either support or not support the placement of the text of the proposed statewide
4 initiative on the ballot in accordance with 13-27-228.

5 (2) Each interim committee shall prepare bills and resolutions that, in its opinion, the welfare of the
6 state may require for presentation to the next regular session of the legislature. An interim committee may by
7 vote request ~~four~~ five bill drafts on a partisan basis and an unlimited number of bill drafts on a bipartisan basis.

8 (3) The legislative services division shall keep accurate records of the activities and proceedings of
9 each interim committee.

10 (4) As used in this section:

11 (a) "bipartisan basis" means a vote in which members from more than one party vote to request a
12 bill draft; and

13 (b) "partisan basis" means a vote in which members from only ~~one~~ the majority party vote to
14 request a bill draft."

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16 NEW SECTION. **Section 2. Effective date.** [This act] is effective on passage and approval.

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